

SENATE No. 60

The Commonwealth of Massachusetts

PRESENTED BY:

Dylan A. Fernandes

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to address the impact of climate change on farms and fisheries.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/16/2025</i>
<i>Joan B. Lovely</i>	<i>Second Essex</i>	<i>10/3/2025</i>

SENATE No. 60

By Mr. Fernandes, a petition (accompanied by bill, Senate, No. 60) of Dylan A. Fernandes for legislation to address the impact of climate change on farms and fisheries. Agriculture.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to address the impact of climate change on farms and fisheries.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 29 of the General Laws is hereby amended by adding the following
2 section:-

3 Section 2RRRRR. Agriculture and Fishery Vulnerability Preparedness Grant Fund

4 (a) There shall be established and set up on the books of the commonwealth a separate
5 fund to be known as the Agriculture and Fishery Vulnerability Preparedness Grant Fund. The
6 fund shall be administered by the secretary of energy and environmental affairs, in consultation
7 with the commissioner of the department of agricultural resources and the commissioner of the
8 department of fish and game. The fund shall be credited with: (i) revenue from appropriations or
9 other money authorized by the general court and specifically designated to be credited to the
10 fund; (ii) interest earned on such revenues; and (iii) funds from public and private sources such
11 as gifts, grants and donations. Amounts credited to the fund shall not be subject to further
12 appropriation and any money remaining in the fund at the end of a fiscal year shall not revert to

the General Fund; provided, however, that such contributions shall not be further restricted by the donor or used by the commonwealth for any other purpose. Any bond proceeds deposited into the fund shall be kept separate from any and all other funds deposited into the fund.

(b) The public purpose of this fund shall be to administer the agriculture and fishery vulnerability preparedness grant program to support farms and fisheries in Massachusetts to engage in the process of (i) planning climate change adaptation and resiliency initiatives, (ii) seeking resources to support implementation, and (iii) implementing priority projects. In furtherance of this public purpose, the secretary, in consultation with the departments, shall administer the fund as grants to farms and fisheries to support controlled climate growing, energy efficiency, renewable energy, climate resilient management practices, nature-based solutions to climate impacts, infrastructure needs to support climate resilience, development and implementation of data collection and monitoring to measure the impact of these investments, and other eligible purposes as determined by the secretary and the commissioners.

(c) Program funds may also be used to establish and provide technical assistance to support farms and fisheries to prioritize and submit applications, plan climate change adaptation and resiliency initiatives, and identify and seek funding sources to support project implementation.

(d) Program funds shall be awarded to applicants from each eligible sector as categorized by farm or fishery proportionate to the amount of funds requested by applicants in each eligible sector.

(e) The secretary shall promulgate rules and regulations for the administration and implementation of subsections (a) and (b). The secretary shall file any policies, rules and

regulations with the joint committee on agriculture for review and comment at least 30 days before the effective date of the policies, rules or regulations.

(f) The secretary shall file a quarterly report with the house and senate committees on ways and means, the joint committee on agriculture, and the clerks of the house and the senate on the following: (i) a list of grant applicants and the counties in which they are located, (ii) list of grant recipients and the counties in which they are located, (iii) the amount of funds requested by applicants, (iv) the associated grant amounts, (v) the applicant's sector as categorized by farm or fishery, (vi) an annual statement detailing the sources and uses of funds, (vii) a forecast of future payments based on current binding obligations, and (viii) a detailed breakdown of the purposes and amounts of administrative costs charged to the fund. The report shall include a description of technical assistance services provided as part of this program.

SECTION 2. Section 1 shall take effect immediately upon the passage of this act.